

STATE OF NEW YORK

5183--B

Cal. No. 443

2025-2026 Regular Sessions

IN SENATE

February 19, 2025

Introduced by Sens. JACKSON, BAILEY, FERNANDEZ, SEPULVEDA, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Elections -- recommitted to the Committee on Elections in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading -- again amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the election law, in relation to including a statement on the envelopes of ballots for early mail voters, absentee voters and special presidential voters for signature affirmation

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 6 of section 7-119 of the election law, as
2 added by chapter 481 of the laws of 2023, is amended to read as follows:
3 6. On the reverse side of such inner affirmation envelope shall be
4 printed the following statement:

AFFIRMATION

6 I do declare that I am a citizen of the United States, that I am duly
7 registered in the election district shown on the reverse side of this
8 envelope and I am qualified to vote in such district; that I have not
9 qualified nor do I intend to vote elsewhere, that I have not committed
10 any act nor am I under any impediment which denies me the right to vote.

11 I hereby declare that the foregoing is a true statement to the best of
12 my knowledge and belief, and I understand that if I make any material
13 false statement in the foregoing statement of early mail voter, I shall
14 be guilty of a misdemeanor.

15 Date 20

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1
 2 Signature or mark of voter
 3
 4 Signature of Witness
 5 (required only if voter
 6 does not sign their own
 7 name)
 8
 9 Address of Witness

10 **IMPORTANT: YOU MUST SIGN THE AFFIRMATION ON THIS ENVELOPE.**

11 § 2. Subdivision 6 of section 7-122 of the election law, as amended by
 12 chapter 411 of the laws of 2019, is amended to read as follows:

13 6. On the reverse side of such inner affirmation envelope shall be
 14 printed the following statement:

15 AFFIRMATION

16 I do declare that I am a citizen of the United States, that I am duly
 17 registered in the election district shown on the reverse side of this
 18 envelope and I am qualified to vote in such district; that I will be
 19 unable to appear personally on the day of the election for which this
 20 ballot is voted at the polling place of the election district in which I
 21 am a qualified voter because of the reason given on my application here-
 22 tofore submitted; that I have not qualified nor do I intend to vote
 23 elsewhere, that I have not committed any act nor am I under any imped-
 24 iment which denies me the right to vote.

25 I hereby declare that the foregoing is a true statement to the best of
 26 my knowledge and belief, and I understand that if I make any material
 27 false statement in the foregoing statement of absentee voter, I shall be
 28 guilty of a misdemeanor.

29 Date.....20.....
 30 Signature or mark of voter

31
 32 Signature of Witness (required only
 33 if voter does not sign [~~his or her~~]
 34 their own name)

35
 36 Address of Witness

37 **IMPORTANT: YOU MUST SIGN THE AFFIRMATION ON THIS ENVELOPE.**

38 § 3. Subdivision 3 of section 7-125 of the election law, as amended by
 39 chapter 411 of the laws of 2019, is amended to read as follows:

40 3. On the reverse side of such envelope shall be printed the follow-
 41 ing statement:

42 STATEMENT OF SPECIAL PRESIDENTIAL VOTER

43 I do declare I am a qualified special presidential voter of said
 44 district; that I am not qualified and am not able to qualify to vote
 45 elsewhere than as set forth on the reverse side of this envelope; that I
 46 am a citizen of the United States; that on the date of the election for
 47 which this ballot is voted, I will be at least eighteen years of age;

1 and that I have not committed any act, nor am I under any impediment,
2 which denies me the right to vote.
3 I hereby declare that the foregoing is a true statement to the best of
4 my knowledge and belief, and I understand that if I make any material
5 false statement in the foregoing statement, I shall be guilty of a
6 misdemeanor.

7 Date.....20.....

8 Signature or mark of voter

9
10 Signature of Witness (required only
11 if voter does not sign [~~his or her~~
12 their own name)

13
14 Address of Witness

15 IMPORTANT: YOU MUST SIGN THE AFFIRMATION ON THIS ENVELOPE.

16 § 4. This act shall take effect one year after it shall have become a
17 law.